

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 19, Honorable Theodore C. Zayner Presiding

Maggie Castellon, Courtroom Clerk
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**To contest the tentative ruling, call (408) 808-6856 before 4:00 P.M. or email
department19@scscourt.org.**

Please state your case name, case number, the name of the attorney and contact number/email. It would also be helpful if you would identify the specific portion or portions of the tentative ruling that you wish to address. Please make sure you have timely notified the Court and all parties that you are contesting the tentative ruling. The tentative ruling will become the ruling of the Court if timely notice has not been given. (See R. Ct. 3.1308(a)(1); Local Rule 8.E.)

Court Reporters are not provided by the Court. Please consult the Court's website, www.scscourt.org, for the rules, policies, and required forms for appointment of privately-retained court reporters.

- **Parties can appear either in person or remotely.** All remote appearances must be made through Unicorn Digital Platform (UDC), unless otherwise arranged with the Court. Please go to https://www.scscourt.org/general_info/ra_teams/video_hearings_teams.shtml to find the appropriate link.
- If any party requests a Court Reporter, the appropriate form must be submitted. The reporter may appear in person or remotely.
- Members of the public who wish to observe can do so through Unicorn Digital Platform (using the link discussed above) or in person. Please make sure to turn your camera off and mute yourself if you are observing the proceedings remotely.
- As a reminder, state and local Court Rules prohibit recording of court proceedings without a Court order. This prohibition applies while in the courtroom and while appearing remotely on any platform.

LAW AND MOTION TENTATIVE RULINGS

**DATE: July 29, 2026 TIME: 1:30 P.M.
PREVAILING PARTY SHALL PREPARE THE ORDER
UNLESS OTHERWISE STATED (SEE [RULE OF COURT 3.1312](#))**

LINE #	CASE #	CASE TITLE	RULING
LINE 1	20CV374597	Regional Medical Center of San Jose, et al. v. County of Santa Clara dba Valley Health Plan	Unopposed application for admission <i>pro hac vice</i> of defense counsel is GRANTED. Court will sign proposed Order. No appearance necessary.
LINE 2	22CV398750	Rozo v. Tactical Operations Protective Services LLC, et al. (PAGA)	Order of Examination. Parties to appear.
LINE 3	22CV403855	Cramer v. MGE Underground, Inc. (Class Action)	See Line 3 for tentative ruling.
LINE 4	23CV413336	Marquez v. Newpath Landscape Services, Inc. (Class Action/PAGA)	See Line 4 for tentative ruling.
LINE 5	24CV430462	Sarkis v. Miltenyi Biotec, Inc. (Class Action)	See Line 5 for tentative ruling.
LINE 6	24CV438270	Holman v. Equinix, LLC (Class Action/PAGA)	See Line 6 for tentative ruling.
LINE 7	24CV447769	Loveless v. Essential Behavioral Support, Inc. (Class Action)	See Line 7 for tentative ruling.
LINE 8	25CV467536	Los Gatos LLC et al v. The Town of Los Gatos et al (CEQA)	See Line 8 for tentative ruling.
LINE 9	25CV473118	Berlin Thomas, individually v. Forty Niners Stadium Management Company LLC (Class Action)	See Line 9 for tentative ruling.
LINE 10	25CV483219	Herlinda Estrada et al vs Chattem, Inc., et al.	See Line 10 for tentative ruling.
LINE 11	26CV486031	Tuumamao Esau Jr, II v. Tekberry, Inc. (Class Action / PAGA)	See Line 11 for tentative ruling.
LINE 12			
LINE 13			

Calendar Line 1

Case Name:

Case No.:

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Calendar Line 2

Case Name:

Case No.:

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Calendar Line 3

Case Name: *Cramer v. MGE Underground, Inc.*
Case No.: 22CV403855

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiffs' motion for preliminary approval of the settlement. Before the Court is Plaintiffs' motion for final approval of the settlement, and the motion is unopposed. As discussed below, the Court GRANTS the motion and sets a compliance hearing for March 24, 2027, at 2:30 p.m. in Department 5.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.) A presumption of fairness exists where: "(1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small." (*Wershba, supra*, 91 Cal.App.4th at p. 245.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys General Act ("PAGA"). The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77.) A PAGA settlement may be substantially discounted, and courts often exercise their

discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

A. Settlement Terms

This case has been settled on behalf of the following class:

[A]ll current and former non-exempt, hourly individuals that worked for Defendant MGE Underground in the State of California during the Class Period [April 4, 2018 through January 22, 2025].

(Declaration of John G. Yslas in Support of Motion for Preliminary Approval, Ex. 1

(“Agreement”), ¶¶ 1.5, 1.13.) The settlement includes a subset PAGA class of Aggrieved Employees, defined as: “all current and former non-exempt, hourly individuals that worked for Defendant MGE Underground, Inc. in the State of California during the PAGA Period [May 9, 2022 through January 22, 2025].” (*Id.* at ¶¶ 1.4, 1.34.)

Defendant will pay a gross settlement amount of \$2,000,000, and this amount includes: attorney fees of up to 35 percent of the gross settlement amount (i.e., \$700,000); litigation costs not to exceed \$40,000; a PAGA allocation of \$100,000 (75 percent of which will be paid to the LWDA and 25 percent of which will be paid to Aggrieved Employees as individual PAGA payments); a service payment of up to \$10,000 to each Plaintiff; and settlement administration costs up to \$14,790. (Agreement, ¶¶ 3.1–3.2.) The net settlement amount will be distributed to participating class members on a pro-rata basis according to the number of workweeks they were employed by Defendant, and individual PAGA payments will be distributed according to the number of pay periods worked. (*Id.* at ¶ 3.2.) At preliminary approval the Court approved and appointed Apex Class Action Administration (“Apex”) as settlement administrator and approved the designation of Legal Aid at Work as the *cy pres* recipient of funds from uncashed settlement checks. (*Id.* at ¶¶ 1.2, 4.4.3.)

In exchange for the settlement, the class members agree to release Defendant and related entities and persons from “all claims that were asserted in the Actions, or that arise from

or could have been asserted based on any of the facts, circumstances, transactions, events, occurrences, acts, disclosures, statements, omissions or failures to act alleged in Plaintiffs' Complaints, regardless of whether such claims arise under federal, state and/or local law, statute, ordinance, regulation, common law, or other source of law." (Agreement, ¶ 5.2.) Aggrieved Employees will be deemed to release Defendant and related entities and persons "from all claims for PAGA civil penalties that are alleged or reasonably could have been alleged based on the facts alleged against Defendant in the operative Complaint in the Actions and Plaintiffs' PAGA Letters...." (*Id.* at ¶ 5.3.) As the Court found at preliminary approval, the release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Administration of Settlement

In its order granting preliminary approval, the Court approved Apex as settlement administrator. On March 11 and March 17, 2026, Defendant provided Apex with the class data and supplemental PAGA data. Apex identified 80 individuals whose PAGA pay period counts exceeded their class workweeks; Defendant's counsel confirmed the workweek counts could be rounded up to match, and the finalized Class List consisted of 1,689 individuals. (Declaration of Elizabeth Botero Bravo ("Bravo Decl."), ¶¶ 5–6.) After running the addresses against the National Change of Address database, Apex mailed the Class Notice to all 1,689 individuals on April 8, 2026. (*Id.* at ¶¶ 7–8 and Ex. A.) Of the 111 notices returned as undeliverable, skip tracing produced 98 updated addresses to which the notice was re-mailed; 13 notices remain undeliverable. (*Id.* at ¶¶ 9–10.)

As of the date of Ms. Bravo's declaration, Apex had received zero requests for exclusion, zero objections, and zero workweek disputes. (*Id.* at ¶¶ 11–14.) Three individuals who were inadvertently omitted from the class data contacted Apex and were confirmed by Defendant's counsel to be class members, bringing the total to 1,692 participating class members, which is 100 percent of the settlement class. (*Id.* at ¶¶ 15–16.) Based on 84,136 class workweeks, Apex estimates the average individual class payment will be approximately \$676.48. (*Id.* at ¶¶ 17–18.) Based on 41,804 pay periods worked by 1,012 Aggrieved

Employees, Apex estimates the average individual PAGA payment will be approximately \$24.70. (*Id.* at ¶¶ 19–20.) The notice process has now been completed.

At preliminary approval, the Court found the settlement to be fair and reasonable. Given that there are no objections, the Court finds no reason to deviate from its earlier finding. Accordingly, the Court finds that the settlement is fair and reasonable for purposes of final approval.

III. Service Awards, Attorney Fees and Costs

Plaintiffs Jarrett Chow and Daniel Enriquez Ulloa each seek a service award of \$10,000. At preliminary approval, the Court directed each Plaintiff to submit a supplemental declaration providing an estimate of the hours he had spent on this action and a description of that work. Both have done so. Having reviewed he Court finds that service awards are justified and that the amounts requested are reasonable. The service awards are approved in the amounts requested.

Plaintiffs’ attorneys seek an attorney fee award of \$700,000, which is 35 percent of the gross settlement amount and the maximum permitted by the Agreement. (Memorandum, pp. 6–12; Declaration of John G. Yslas in Support of Motion for Final Approval (“Yslas Decl.”), ¶¶ 16–22.) Counsel report a combined lodestar of \$464,767 for approximately 468.35 hours billed across four firms: Wilshire Law Firm, PLC (310.3 hours, \$344,910); D.Law, Inc. (129.25 hours, \$94,362); United Employees Law Group, P.C. (21.7 hours, \$15,732.50); and David Yeremian & Associates, Inc. (7.1 hours, \$9,762.50). (Yslas Decl., ¶¶ 21–22; Declaration of Enoch J. Kim, ¶ 26; Declaration of Walter L. Haines, ¶¶ 9–10; Declaration of David Yeremian, ¶ 8.)

The hours reported are reasonable for a four-year class and representative action that proceeded through informal discovery, mediation, and two rounds of approval briefing. The benefits achieved by the settlement justify an award of attorney fees to class counsel. The Court approves an attorney fee award in the requested amount of \$700,000.

Plaintiffs’ counsel request reimbursement of litigation costs in the amount of \$20,612.56, comprising \$11,164.76 incurred by Wilshire Law Firm and \$9,447.80 incurred by

D.Law, and they provide itemized records in support. (Memorandum, p. 12; Yslas Decl., ¶ 23 and Ex. 2; Kim Decl., ¶ 26.) The request is well below the \$40,000 cap in the Agreement. The Court approves reimbursement of litigation costs in the requested amount. Settlement administration costs are likewise approved in the requested amount of \$14,790. (Bravo Decl., ¶ 21.)

IV. Conclusion

The Court GRANTS the motion for final approval of the settlement and sets a compliance hearing for March 24, 2027, at 2:30 p.m. in Department 5.

Plaintiffs shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 4

Case Name: *Marquez v. Newpath Landscape Services, Inc.*
Case No.: 23CV413336

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiffs' motion for preliminary approval of the settlement. Before the Court is Plaintiffs' motion for final approval of the settlement, and the motion is unopposed. As discussed below, the Court GRANTS the motion and sets a compliance hearing for March 24, 2027, at 2:30 p.m. in Department 5.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. *Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.) A presumption of fairness exists where: "(1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small." (*Wershba, supra*, 91 Cal.App.4th at p. 245.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys General Act ("PAGA"). The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77.) A PAGA settlement may be substantially discounted, and courts often exercise their

discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

A. Settlement Terms

This case has been settled on behalf of the following class:

All current and former hourly–paid or non–exempt employees of Defendant in California during the Class Period [March 30, 2019 through June 17, 2025].

(Declaration of Kane Moon in Support of Motion for Preliminary Approval, Ex. 2

(“Agreement”), ¶¶ 1.5, 1.12.) The settlement includes a subset PAGA class of Aggrieved Employees, defined as: “[a]ll hourly–paid, non–exempt employees of Defendant who worked for Defendant in the State of California during the PAGA Period [March 30, 2022 through June 17, 2025].” (*Id.* at ¶¶ 1.4, 1.31.)

Defendant will pay a non–reversionary gross settlement amount of \$650,000, and this amount includes: attorney fees of up to one–third of the gross settlement amount (i.e., \$216,666.66); litigation costs according to proof; PAGA penalties of \$65,000 (75 percent of which, or \$48,750, will be paid to the LWDA and 25 percent of which, or \$16,250, will be paid to Aggrieved Employees as individual PAGA payments); service payments of up to \$7,500 to Plaintiff Marquez and up to \$5,000 to Plaintiff Sanchez; and settlement administration costs up to \$8,850. (Agreement, ¶¶ 3.3.1–3.3.5.) The net settlement amount will be distributed to participating class members on a pro–rata basis according to the number of workweeks they were employed by Defendant, and individual PAGA payments will be distributed according to the number of pay periods worked. (*Id.* at ¶¶ 3.3.4, 3.3.5.1.) At preliminary approval the Court approved and appointed ILYM Group, Inc. (“ILYM”) as settlement administrator and approved the designation of Legal Aid at Work as the *cy pres* recipient of funds from settlement checks that remain uncashed 180 days after mailing. (*Id.* at ¶ 4.4.3.)

In exchange for the settlement, the class members agree to release Defendant and related entities and persons from “all claims that were asserted in the Operative Complaint, or

that arise from or reasonably could have been asserted, based on any of the facts, circumstances, transactions, events, occurrences, acts, disclosures, statements, omissions or failures to act alleged in Plaintiffs’ Operative Complaint, regardless of whether such claims arise under federal, state and/or local law, statute, ordinance, regulation, common law, or other source of law.” (Agreement, ¶ 5.2.) Aggrieved Employees will be deemed to release “any and all claims for PAGA civil penalties that are alleged in Plaintiffs’ Operative Complaint and PAGA Letters,” to the extent those claims accrued during the PAGA Period. (*Id.* at ¶ 5.3.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Administration of Settlement

In its order granting preliminary approval, the Court approved ILYM as settlement administrator. ILYM received the class data from Defendant on February 3, 2026. The class data identified 520 class members who worked 33,282 workweeks during the Class Period, and 352 Aggrieved Employees who worked 9,330 pay periods during the PAGA Period. (Declaration of Nathalie Hernandez (“Hernandez Decl.”), ¶¶ 4–5.) After running the addresses against the National Change of Address database, ILYM mailed the notice packet, in English and Spanish, to all 520 class members on February 19, 2026. (*Id.* at ¶¶ 6–7 and Ex. A.) The deadline to request exclusion or object was April 20, 2026. As of the date of Ms. Hernandez’s declaration, ILYM had received zero requests for exclusion and zero objections. (*Id.* at ¶¶ 11–13.) ILYM estimates that the average individual class payment will be approximately \$625.75. The notice process has now been completed.

At preliminary approval, the Court found the settlement to be fair and reasonable and within the range of possible approval. Given the absence of any objection, the Court finds no reason to deviate from its earlier finding. Accordingly, the Court finds that the settlement is fair and reasonable for purposes of final approval.

III. Service Awards, Attorney Fees and Costs

Plaintiff Marquez seeks a service award of \$7,500 and Plaintiff Sanchez seeks a service award of \$5,000. Each has provided a declaration describing his participation in the litigation, the reputational risk he undertook in suing an employer, and his understanding of the duties of a class representative, and each estimates that he devoted 25 to 30 hours to the case. (Declaration of Rufino Marquez, ¶¶ 17–26; Declaration of Santos Sanchez, ¶¶ 17–26.) The Court finds that service awards are justified and that the amounts requested are reasonable. The service awards are approved in the amounts requested.

Class Counsel seek an attorney fee award of \$216,666.66, which is one third of the gross settlement amount and the maximum permitted by the Agreement. (Memorandum, pp. 16–19; Moon Decl., ¶¶ 64–77.) Counsel reports a lodestar of \$130,675 for 172.6 hours billed by five attorneys of Moon Law Group, PC at rates ranging from \$450 to \$950 per hour, a blended rate of approximately \$757 per hour, and they do not include in that figure the time still to be spent obtaining final approval and overseeing administration. (Moon Decl., ¶¶ 71–72.) The requested fee therefore reflects a multiplier of approximately 1.66, which is within the range of multipliers generally approved by California courts.

The benefits achieved by the settlement justify an award of attorney fees to class counsel. The Court approves an attorney fee award in the requested amount of \$216,666.66.

Class Counsel request reimbursement of litigation costs in the amount of \$15,336.61, and they provide an itemized list in support, the largest single item being an \$8,500 mediation fee. (Memorandum, p. 20; Moon Decl., ¶¶ 15, 78 and Ex. 4.) The Agreement provides for reimbursement of actual costs according to proof, and the amount sought is modestly above the \$14,743.44 that counsel estimated at preliminary approval. The Court approves reimbursement of litigation costs in the requested amount. Settlement administration costs are likewise approved in the requested amount of \$8,850. (Hernandez Decl., ¶ 16.)

IV. Conclusion

The Court GRANTS the motion for final approval of the settlement and sets a compliance hearing for March 24, 2027, at 2:30 p.m. in Department 5.

Plaintiffs shall prepare the order in accordance with California Rules of Court, rule 3.1312.

Calendar Line 5

Case Name: *Sarkis v. Miltenyi Biotec, Inc.*
Case No.: 24CV439462

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiffs' motion for preliminary approval of the settlement. Before the Court is Plaintiffs' motion for final approval of the settlement, and the motion is unopposed. As discussed below, the Court GRANTS the motion and sets a compliance hearing for March 24, 2027, at 2:30 p.m. in Department 5.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.) A presumption of fairness exists where: "(1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small." (*Wershba, supra*, 91 Cal.App.4th at p. 245.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys General Act ("PAGA"). The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77.) A PAGA settlement may be substantially discounted, and courts often exercise their

discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

A. Settlement Terms

This case has been settled on behalf of the following class:

[A]ll persons who are or were previously employed by Defendant in California classified as a non-exempt employee during the Class Period [February 5, 2020 through August 12, 2025].

(Declaration of Mehrdad Bokhour in Support of Motion for Preliminary Approval, Ex. A (“Agreement”), ¶¶ 7, 39.) The settlement includes a subset PAGA class of Aggrieved Employees, defined as: “all persons who are or were previously employed by Defendant in California classified as a non-exempt or hourly employee at any time from February 5, 2023 through August 12, 2025.” (*Id.* at ¶ 3.)

Defendant will pay a gross settlement amount of \$2,100,000, and this amount includes: attorney fees of up to one third of the gross settlement amount (i.e., \$700,000); litigation costs not to exceed \$40,000; a PAGA penalties allocation of \$100,000 (75 percent of which will be paid to the LWDA and 25 percent of which will be paid to Aggrieved Employees as individual PAGA payments); a service payment of up to \$10,000 to each Plaintiff (\$20,000 total); and settlement administration costs up to \$6,000. (Motion, pp. 1–2; Agreement, ¶ 48 et seq.) The net settlement amount will be distributed to participating class members on a pro-rata basis according to the number of workweeks they were employed by Defendant, and individual PAGA payments will be distributed according to the number of pay periods worked. (Agreement, ¶ 48(d).) Settlement checks will be void 180 days after issuance. At preliminary approval the Court appointed Phoenix Class Action Administration Solutions (“Phoenix”) as settlement administrator and approved the designation of the Interdisciplinary Center for Healthy Workplaces at the University of California, Berkeley as the *cy pres* recipient of funds from uncashed settlement checks. (*Id.* at ¶¶ 36, 74.)

In exchange for the settlement, the class members agree to release Defendant and related entities and persons from “all claims that were alleged, or reasonably could have been alleged, based on the facts stated in the operative Complaint...” (Agreement, ¶¶ 4, 32.) Aggrieved Employees will be deemed to release Defendant and related entities and persons from “any and all claims for PAGA penalties that were alleged, or reasonably could have been alleged during the PAGA Period, based on the facts stated in the Complaint and the PAGA Notice....” (*Id.* at ¶¶ 23, 32.) As the Court found at preliminary approval, the release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Administration of Settlement

In its order granting preliminary approval, the Court appointed Phoenix as settlement administrator. On February 2, 2026, Defendant provided Phoenix with the class list, which contained 230 class members. (Declaration of Taylor Mitzner (“Mitzner Decl.”), ¶ 3.) Phoenix mailed the class notice to all 230 class members on February 17, 2026. (*Id.* at ¶¶ 4–5 and Ex. A.) The deadline to request exclusion, object, or submit a workweek dispute was April 3, 2026. Phoenix received one request for exclusion, zero objections, and one workweek dispute, which it referred to counsel for both sides for review. (*Id.* at ¶¶ 7–9.) Phoenix estimates the average individual settlement share at \$5,388.65. (*Id.* at ¶ 13.) The notice process has now been completed.

At preliminary approval, the Court found the settlement to be fair and reasonable. As there are objections to the settlement, the Court finds no reason to deviate from its earlier finding. Accordingly, the Court finds that the settlement is fair and reasonable for purposes of final approval.

III. Service Awards, Attorney Fees and Costs

Plaintiffs Sharolin Sarkis and Ana Cabrera each seek a service award of \$10,000. At preliminary approval the Court noted that each Plaintiff had submitted a declaration estimating approximately 35 to 40 hours devoted to activities benefiting the class, including preparing for

and sitting for depositions, and deferred the amount of the awards to final approval. In addition to their deposition testimony, both Plaintiffs participated in two separate mediations, gathered and provided documents, and executed general releases of their individual claims that are materially broader than the release given by the class. (Motion, pp. 13–15; Bokhour Decl., ¶¶ 15–16.) The requested amounts were disclosed in the class notice and no class member objected to them. The Court finds that service awards are justified and that the amounts requested are reasonable. The service awards are approved in the amounts requested.

Class Counsel seek an attorney fee award of \$700,000, which is one third of the gross settlement amount and the maximum permitted by the Agreement. (Motion, pp. 7–13; Bokhour Decl., ¶¶ 17–21; Declaration of Joshua Falakassa (“Falakassa Decl.”), ¶¶ 15–16.) Counsel report a combined lodestar of \$250,862.50 for 340 hours: 174.5 hours by Mr. Bokhour at \$750 per hour (\$130,875), and 165.5 hours by Mr. Falakassa at \$725 per hour (\$119,987.50). The requested fee therefore reflects a multiplier of approximately 2.79, which is within the range of multipliers California courts approve. The benefits achieved by the settlement justify an award of attorney fees to class counsel. The Court approves an attorney fee award in the requested amount of \$700,000.

Class Counsel report actual litigation costs of \$46,829.01, itemized as a \$75 LWDA filing fee, \$25,941.25 in mediation fees, \$6,165 in expert fees, \$12,165.20 in deposition costs, \$2,393.96 in filing fees, and \$88.60 in service of process charges. (Bokhour Decl., ¶ 22.) Because the Agreement caps recoverable costs at \$40,000 and the class notice disclosed that cap, counsel seek only \$40,000 and absorb the difference. (*Id.* at ¶ 23.) The Court approves reimbursement of litigation costs in the requested amount of \$40,000. Settlement administration costs are likewise approved in the requested amount of \$6,000. (Mitzner Decl., ¶ 16 and Ex. B.)

IV. Conclusion

The Court GRANTS the motion for final approval of the settlement and sets a compliance hearing for March 24, 2027, at 2:30 p.m. in Department 5.

Plaintiffs shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 6

Case Name: *Holman v. Equinix, LLC*
Case No.: 24CV438270

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiff's motion for preliminary approval of the settlement by order filed February 26, 2026. Before the Court is Plaintiff's motion for final approval of the settlement. The motion is unopposed.

As discussed below, the Court finds that the notice process was adequate and that the settlement is fair, reasonable, and adequate. Nevertheless, the parties have not satisfied the condition imposed at preliminary approval that they designate a *cy pres* beneficiary for uncashed settlement funds in compliance with Code of Civil Procedure section 384. The settlement agreement and the class notice as mailed continue to direct that uncashed funds be transmitted to the State Controller's Unclaimed Property Fund, a disposition the Court has already found does not comply with section 384. Accordingly, the Court CONTINUES the hearing on the motion for final approval to September 9, 2026 at 1:30 p.m. in Department 5 and orders the parties to cure this deficiency as set forth in Part IV below.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys

General Act (“PAGA”). The trial court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

A. Settlement Terms

This case has been settled on behalf of the following class:

[A]ll persons who worked for Equinix in California as an hourly-paid, non-exempt employee and received wages for hours worked at any time during the Class Period [May 7, 2020 through June 10, 2025].

(Declaration of Kane Moon in Support of Motion for Preliminary Approval, Ex. 1 (“Agreement”), ¶¶ 1.E, 1.FF.) The settlement includes a subset PAGA class of Aggrieved Employees, defined as “all persons who worked for Equinix in California as an hourly-paid, non-exempt employee and received wages for hours worked at any time during the PAGA Period [May 7, 2023 through June 10, 2025].” (*Id.* at ¶¶ 1.B, 1.T.)

Defendant will pay a gross settlement amount of \$1,375,000, and this amount includes: attorney fees of up to 35 percent of the gross settlement amount (\$481,250); litigation costs not to exceed \$25,000; a PAGA penalties allocation of \$137,500 (75 percent of which, or \$103,125, will be paid to the LWDA, and 25 percent of which, or \$34,375, will be paid to Aggrieved Employees as individual PAGA payments); a service payment of up to \$7,500 to Plaintiff; and settlement administration costs up to \$20,000. (Motion, pp. 5-8; Agreement, ¶¶ 1.L, 12–15.) The net settlement amount will be distributed to participating class members on a pro-rata basis according to the number of qualifying workweeks they were employed by Defendant, and individual PAGA payments will be distributed according to the number of

qualifying pay periods worked. (Agreement, ¶¶ 11, 15.) The settlement is non-reversionary; no portion of the gross settlement amount will revert to Defendant. (*Id.* at ¶ 1.L.)

The Agreement provides that Phoenix Class Action Administration Solutions (“Phoenix”) will serve as settlement administrator, and the Court appointed Phoenix at preliminary approval. (Agreement, ¶ 1.EE.) The Agreement further provides that any funds from uncashed settlement checks will be transmitted to the California State Controller’s Office Unclaimed Property Fund in the name of the individual. (*Id.* at ¶ 11.A.) As discussed in Part IV below, this provision does not comply with Code of Civil Procedure section 384, and it remains an unresolved condition of approval.

In exchange for the settlement, the class members agree to release Defendant and related entities and persons from “any and all claims that have been or could reasonably have been asserted based on the factual allegations in the Operative Complaint” for the duration of the Class Period, including related claims under the federal Fair Labor Standards Act. (Agreement, ¶¶ 1.Z, 7.A.) Aggrieved Employees will be deemed to release Defendant and related entities and persons from all claims for PAGA civil penalties that were alleged or could reasonably have been alleged based on the same facts alleged in the operative Complaint and the PAGA notices, arising during the PAGA Period. (*Id.* at ¶ 7.B.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Administration of Settlement

In its order granting preliminary approval, the Court approved Phoenix as settlement administrator. On March 24, 2026, Defendant delivered the class data to Phoenix, and the Class List contained 563 Class Members and 366 Aggrieved Employees. (Declaration of Taylor Mitzner (“Mitzner Decl.”), ¶¶ 3, 14.) On March 25, 2026, Phoenix performed a National Change of Address search to update the mailing addresses. (*Id.* at ¶ 4.) On March 30, 2026, Phoenix mailed the Class Notice, in English and Spanish, to all 563 Class Members. (*Id.* at ¶ 5 and Ex. A.) No notices were returned as undeliverable. (*Id.* at ¶ 6.)

The deadline to request exclusion, submit a written objection, or submit a workweek dispute was May 29, 2026. (*Id.* at ¶¶ 7–9.) As of the date of Mr. Mitzner’s declaration, Phoenix had received zero requests for exclusion, zero objections, and zero workweek disputes. (*Ibid.*) All 563 Class Members (100 percent of the Class) therefore remain in the Class. (*Id.* at ¶ 10.) Phoenix estimates the average individual settlement share will be approximately \$1,281.81, and the average individual PAGA payment will be approximately \$93.92; the net settlement amount available for distribution is \$721,659.47. (*Id.* at ¶¶ 12–14.) The notice process has now been completed.

At preliminary approval, the Court found the settlement to be fair and reasonable. Given that there are no objections, the Court finds no reason to deviate from that finding now. Accordingly, the Court finds that the settlement is fair, reasonable, and adequate for purposes of final approval.

III. Service Award, Attorney Fees, and Costs

Plaintiff seeks a service award of \$7,500. Plaintiff has provided a declaration detailing his participation in this litigation (including approximately 30 hours devoted to the case) and the reputational and other risks he undertook as the named plaintiff. (Declaration of Edward Holman, ¶¶ 12-13, 22.) The Court finds that a service award is justified and that the amount requested is reasonable. The Court is prepared to approve the service award in the amount requested.

Class Counsel seek an attorney fee award of \$481,250, equal to 35 percent of the gross settlement amount. (Motion, pp. 16:19–21:16; Moon Decl., ¶¶ 65–69.) As a cross-check, Class Counsel represent that their lodestar is \$175,450, based on 218.2 hours of attorney time at their customary hourly rates, which yields a multiplier of approximately 2.74. (Moon Decl., ¶¶ 66, 69.) While a multiplier of 2.74 is at the higher end of the range, the Court recognizes the contingent risk Class Counsel assumed, the results achieved for the Class. The Court is prepared to approve the requested fee once the defect related to Code of Civil Procedure section 384 has been cured, as discussed below.

Class Counsel request reimbursement of litigation costs in the amount of \$16,590.53, and they provide an itemized accounting in support. (Moon Decl., ¶¶ 16, 73, Ex. 4.) This amount is below the \$25,000 cap set by the Agreement, with the difference reverting to the net settlement amount. The Court finds the request reasonable. Settlement administration costs of \$10,500 (below the \$20,000 cap) are likewise supported and reasonable. (Mitzner Decl., ¶ 16, Ex. B.) The Court is prepared to approve reimbursement of litigation costs and settlement administration costs in the requested amounts.

IV. Compliance with Code of Civil Procedure Section 384

Only one matter remains that precludes final approval at this time – the disposition of uncashed settlement funds. In its order granting preliminary approval, the Court expressly considered and rejected the parties’ proposal to transmit uncashed checks to the State Controller’s Unclaimed Property Fund. Defense counsel argued at the preliminary approval hearing that the Court should approve the settlement without a *cy pres* designation under section 384; the Court found that “doing so would be contrary to the clear language, policy and intent of section 384,” and required the parties to designate a section 384 compliant *cy pres* beneficiary.

The Court conditioned preliminary approval on the parties (i) meeting and conferring to designate a *cy pres* beneficiary in writing, (ii) submitting a supplemental declaration amending the Settlement Agreement to comply with section 384, and (iii) revising the class notice accordingly, all within 10 court days of the February 26, 2026 order.

Section 384, subdivision (b), requires the court to ensure that unpaid residue or unclaimed or abandoned class member funds be paid “to nonprofit organizations or foundations to support projects that will benefit the class or similarly situated persons, or that promote the law consistent with the objectives and purposes of the underlying cause of action, to child advocacy programs, or to nonprofit organizations providing civil legal services to the indigent.” (Code Civ. Proc., § 384, subd. (b).)

The present motion does not demonstrate compliance with that condition. No *cy pres* beneficiary has been designated. To the contrary, the operative Settlement Agreement (¶ 11.A)

and the Class Notice as actually mailed both continue to provide that uncashed checks will be sent to the State Controller's Unclaimed Property Fund. (Mitzner Decl., Ex. A.) Rather than curing the deficiency, the motion (Part V) renews the very argument the Court already rejected, contending that, because uncashed funds are deposited with the Unclaimed Property Fund in each individual's name, there will be no "unpaid residue" and section 384 is not implicated. The Court is not persuaded and reaffirms its prior ruling. Directing abandoned class funds to the Unclaimed Property Fund does not satisfy section 384's requirement that such funds be devoted to the statutorily enumerated *cy pres* purposes.

Accordingly, on or before August 26, 2026, the parties shall meet and confer and designate a *cy pres* beneficiary in compliance with Code of Civil Procedure section 384 and shall submit a supplemental declaration incorporating an amendment or modification of the Settlement Agreement to that effect. The parties shall also address whether the change to the uncashed-funds provision requires any supplemental or corrective notice to the Class. The Court will address final approval, including the service award and the requested fees and costs, at the continued hearing.

V. Conclusion

The hearing on Plaintiff's motion for final approval of the settlement is CONTINUED to September 9, 2026 at 1:30 p.m. in Department 5. On or before August 26, 2026, the parties shall designate a section 384-compliant *cy pres* beneficiary, submit a supplemental declaration amending the Settlement Agreement accordingly, and address any resulting notice issues, as set forth in Part IV above. In all other respects the Court finds the settlement fair, reasonable, and adequate, and is prepared to grant final approval once the section 384 deficiency is cured.

The Court will prepare the order.

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Calendar Line 7

Case Name: *Loveless v. Essential Behavioral Support, Inc.*

Case No.: 24CV447769

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on July 29, 2026, at 1:30 p.m. in Department 19. The Court now issues its tentative ruling as follows:

I. INTRODUCTION

This putative class and representative action arises from various alleged wage and hour violations. On December 6, 2024, plaintiff Tracy Loveless (“Plaintiff”) filed the First Amended Complaint (“FAC”) against defendant Essential Behavioral Support, Inc. (“Defendant”). The FAC sets forth the following causes of action: (1) failure to pay minimum and straight time wages; (2) failure to pay overtime wages; (3) failure to provide meal periods; (4) failure to authorize and permit rest periods; (5) failure to timely pay final wages at termination; (6) failure to provide accurate itemized wage statements; (7) failure to indemnify employees for expenditures; (8) failure to produce requested employment records; (9) unfair business practices; and (10) civil penalties under the Labor Code Private Attorneys General Act of 2004 (“PAGA”).

Plaintiff now seeks an order: granting preliminary approval of class action settlement agreement; preliminarily certifying the class for settlement purposes; appointing Plaintiff as class representative; appointing Plaintiff’s counsel, Tyler Woods, James Yoo, Heriberto Ponce, Ruby Carrera, Alan Wilcox, and Conor J.D. Gomez of Wilshire Law Firm, PLC as class counsel; approving the notice form and procedure; appointing Apex Class Action, LLC (“Apex”) as administrator; and scheduling a final approval hearing.

II. LEGAL STANDARD

A. Class Action

Generally, “questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235 (*Wershba*)),

disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.)

In determining whether a class settlement is fair, adequate and reasonable, the trial court should consider relevant factors, such as the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement. (*Wershba, supra*, 91 Cal.App.4th at pp. 244-245, internal citations and quotations omitted.)

In general, the most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130 (*Kullar*).) But the trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Wershba, supra*, 91 Cal.App.4th at p. 245.) The trial court must examine the "proposed settlement agreement to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned." (*Ibid.*, citation and internal quotation marks omitted.)

The burden is on the proponent of the settlement to show that it is fair and reasonable. However, "a presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small." (*Wershba, supra*, 91 Cal.App.4th at p. 245, citation omitted.)

B. PAGA

Labor Code section 2699, subdivision (l)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" PAGA. The court's review "ensur[es] that any negotiated resolution is fair to those affected." (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549.) Seventy-five percent of any penalties recovered under

PAGA go to the Labor and Workforce Development Agency (LWDA), leaving the remaining twenty-five percent for the aggrieved employees. (*Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 380, overruled on other grounds by *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639.)

Like its review of class action settlements, the Court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) It must make this assessment “in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (*Id.* at p. 77; see also *Haralson v. U.S. Aviation Servs. Corp.* (N.D. Cal. 2019) 383 F. Supp. 3d 959, 971 [“when a PAGA claim is settled, the relief provided for under the PAGA [should] be genuine and meaningful, consistent with the underlying purpose of the statute to benefit the public”], quoting LWDA guidance discussed in *O’Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110 (*O’Connor*).)

The settlement must be reasonable considering the potential verdict value. (See *O’Connor, supra*, 201 F.Supp.3d at p. 1135 [rejecting settlement of less than one percent of the potential verdict].) But a permissible settlement may be substantially discounted, given that courts often exercise their discretion to award PAGA penalties below the statutory maximum even where a claim succeeds at trial. (See *Viceral v. Mistras Group, Inc.* (N.D. Cal., Oct. 11, 2016, No. 15-cv-02198-EMC) 2016 WL 5907869, 2016 U.S. Dist. LEXIS 140759, at *20-24.)

III. DISCUSSION

A. Provisions of the Settlement

Plaintiff moves for approval of a proposed settlement made on behalf of:

[A]ll current and former hourly, non-exempt employees employed by

Defendant, in the State of California during the Class Period [September 20,

2020 through the day the Court grants preliminary approval of the Settlement.]

(See Declaration of J.D. Gomez, Ex. 1 [“Agreement”], §§ 1.5, 1.14.) The settlement also

includes a subset PAGA class of aggrieved employees defined as “all current and former hourly, non-exempt employees employed by Defendant in the State of California during the

PAGA period [September 20, 2023 through the day the Court grants preliminary approval of the Settlement.]” (*Id.* at §§ 1.4, 1.34.)

Defendant will pay a gross settlement amount of \$512,500.00. This amount includes: (1) the net settlement amount; (2) individual class payments; (3) individual PAGA payments; (4) PAGA penalties in the amount of \$25,625.00 (35% of which will go to the aggrieved employees and 65% of which will go to the LWDA); (5) class counsel fees of up to one-third of the gross settlement amount, or \$170,833.33; (6) class counsel expenses not to exceed \$25,000.00; (7) class representative service payment; and (8) administrator’s expenses not to exceed \$10,000.00.¹ The individual class payment will be distributed to participating class members on a pro rata basis according to the number of workweeks they worked during the class period. The individual PAGA payments will be distributed to aggrieved employees on a pro rata basis according to the number of PAGA pay periods worked during the PAGA period.

In exchange for the settlement, the class members agree to release Defendant and related entities and persons “all claims arising during the Class Period which were asserted against Defendant in the Operative Complaint filed in the Action or which reasonably could have been asserted against Defendant based on the factual allegations stated [in] the Operative Complaint filed in the Action.” (Agreement, § 4.2.) Aggrieved employees are deemed to have released Defendant from “all claims for civil penalties under [PAGA] arising during the PAGA Period that (a) were asserted against Defendant in Plaintiff’s PAGA Notice preceding the Action and/or in the Operative Complaint filed in the Action, or (b) reasonably could have been asserted against Defendant based on the factual allegations stated in Plaintiff’s PAGA Notice preceding the Action (and/or any amended notices) and/or the Operative Complaint filed in the Action[.]” (*Id.* at § 4.3.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Fairness of the Settlement

Plaintiff contends the Settlement meets the standards for preliminary approval. The parties participated in arm’s length negotiations via private mediation with class action

¹ While the Agreement states that administrator costs are “not to exceed \$10,000.00” (Agreement, § 2.8.3), Plaintiff’s counsel states that administration costs are capped at \$8,990.00. (Gomez Decl., ¶ 10.)

mediator Jason Marsili. (Gomez Decl., ¶ 7.) Prior to reaching settlement, Plaintiff's counsel conducted informal discovery concerning Plaintiff's claims, including reviewing timekeeping and payroll records, Defendant's policies and procedures on wage payment, and other information. (*Id.* at ¶¶ 5-6.)

Plaintiff's counsel estimated that Defendant's maximum exposure for the class claims is approximately \$1,576,793.80. (Gomez Decl., ¶ 23.) The expected class member payments is \$486,875.00, and the PAGA settlement amount is \$25,625.00 (35% of which will go to the aggrieved employees and 65% of which will go to the LWDA). The total gross settlement amount of \$512,500.000 represents approximately 32.5 percent of the Defendant's estimated total maximum exposure. Therefore, the proposed settlement amount is within the general range of percentage recoveries that California courts have found to be reasonable. (See *Cavazos v. Salas Concrete, Inc.* (E.D. Cal., Feb 18, 2022, No. 1:19-cv-00062-DAD-EPG) 2022 U.S. Dist. LEXIS 30201, at *41-42 [citing cases approving settlements in the range of 5 to 35 percent of the maximum potential exposure].) Furthermore, Plaintiff's counsel has explained how the parties arrived at the proposed settlement now before the Court.

The Court has reviewed Plaintiff's written submissions and is satisfied that the settlement is fair and may be approved.

C. Service Award, Fees, and Costs

Plaintiff seeks a \$10,000.00 service award.

The rationale for making enhancement or incentive awards to named plaintiffs is that they should be compensated for the expense or risk they have incurred in conferring a benefit on other members of the class. An incentive award is appropriate if it is necessary to induce an individual to participate in the suit.

Criteria courts may consider in determining whether to make an incentive award include: 1) the risk to the class representative in commencing suit, both financial and otherwise; 2) the notoriety and personal difficulties encountered by the class representative; 3) the amount of time and effort spent by the class representative; 4) the duration of the litigation and; 5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation.

These “incentive awards” to class representatives must not be disproportionate to the amount of time and energy expended in pursuit of the lawsuit.

(*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1394-1395, internal punctuation and citations omitted.) Incentive awards are particularly appropriate where a plaintiff undertakes a significant reputational risk in bringing an action against an employer. (*Covillo v. Specialty’s Café* (N.D. Cal. 2014) 2014 U.S.Dist.LEXIS 29837, at *29.)

Plaintiff provided a declaration describing her participation in this action and her understanding of her responsibilities as class representative. She estimates that she has spent approximately 90 hours working on this case in various ways. The Court will issue its determination of the approved service award amount at the final approval hearing.

The court also has an independent right and responsibility to review the requested attorney fees and only award so much as it determines reasonable. (See *Garabedian v. Los Angeles Cellular Telephone Co.* (2004) 118 Cal.App.4th 123, 127-128.) Plaintiff’s counsel will seek attorney fees of up to one-third of the gross settlement amount (\$170,833.33) and up to \$25,000.00 for litigation expenses. The anticipated settlement administration costs are not to exceed \$10,000.00. Prior to the final approval hearing, Plaintiff’s counsel shall submit lodestar information (including hourly rate and hours worked) as well as evidence of actual litigation costs incurred and settlement administration costs.

D. Conditional Certification of Class

Plaintiffs request that the class be conditionally certified for purposes of the settlement. Rule 3.769(d) of the California Rules of Court states that “[t]he court may make an order approving or denying certification of a provisional settlement class after [a] preliminary settlement hearing.” California Code of Civil Procedure Section 382 authorizes certification of a class “when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court . . .” As interpreted by the California Supreme Court, section 382 requires: (1) an ascertainable class; and (2) a well-defined community of interest among the class members. (*Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 326 (*Sav-On*).)

The “community-of-interest” requirement encompasses three factors: (1) predominant questions of law or fact; (2) class representatives with claims or defenses typical of the class; and, (3) class representatives who can adequately represent the class. (*Sav-On, supra*, 34 Cal.4th at p. 326.) “Other relevant considerations include the probability that each class member will come forward ultimately to prove his or her separate claim to a portion of the total recovery and whether the class approach would actually serve to deter and redress alleged wrongdoing.” (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.) The plaintiff has the burden of establishing that class treatment will yield “substantial benefits” to both “the litigants and to the court.” (*Blue Chip Stamps v. Superior Court* (1976) 18 Cal.3d 381, 385.) As explained by the California Supreme Court,

The certification question is essentially a procedural one that does not ask whether an action is legally or factually meritorious. A trial court ruling on a certification motion determines whether the issues which may be jointly tried, when compared with those requiring separate adjudication, are so numerous or substantial that the maintenance of a class action would be advantageous to the judicial process and to the litigants.

(*Sav-On, supra*, 34 Cal.4th at p. 326, internal punctuation and citations omitted.)

Plaintiff states there are 407 class members that can be identified from a review of Defendant’s records. There are common questions regarding whether class members were subjected to common practices that violated wage and hour laws. No issue has been raised regarding the typicality or adequacy of Plaintiffs as class representatives. Therefore, the court finds that the proposed class should be conditionally certified for settlement purposes.

E. Class Notice

The content of a class notice is subject to court approval. “If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court.” (Cal. Rules of Court, rule 3.769(f).) “The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement.” (*Ibid.*) In determining the manner of the notice, the

court must consider: “(1) The interests of the class; (2) The type of relief requested; (3) The stake of the individual class members; (4) The cost of notifying class members; (5) The resources of the parties; (6) The possible prejudice to class members who do not receive notice; and (7) The res judicata effect on class members.” (Cal. Rules of Court, rule 3.766(e).)

Here, the form of the notice is generally adequate. It describes the lawsuit, explains the settlement, and states the settlement amounts, including attorney fees and payment to the named plaintiff. The notice informs class members that they may appear at the final approval hearing to make an oral objection without filing a written objection.

However, the third page of the notice is deficient in suggesting that recipients have only “two basic options” under the settlement: do nothing or opt-out. This portion of the notice must be modified to clarify that recipients have two more “basic options”: to object or challenge the number of workweeks and/or pay periods.

Finally, the following language regarding the final approval hearing shall be added to the notice:

Class members may appear at the final approval hearing in person, or remotely using the link for Department 5 (Afternoon Session), and should review the remote appearance instructions beforehand:

<https://santaclara.courts.ca.gov/online-services/remote-hearings>

Class members who wish to appear remotely are encouraged to contact class counsel at least three days before the hearing, if possible, so that potential technology or audibility issues can be avoided or minimized.

Turning to the notice procedure, the parties have selected Apex as the settlement administrator. Defendant will deliver the class data (*i.e.*, class list and related qualifying workweeks and contact information) to Apex within twenty-one (21) business days after preliminary approval. Apex shall notify class counsel that the class data has been received and state the number of class members, aggrieved employees, workweeks, and pay periods in the class data. Apex shall update class members’ addresses using the National Change of Address Database and mail the notice packet within fourteen (14) days after receiving the class data. The notice shall be mailed to all identified class members via first-class United States Postal

Service mail. Any returned notices will be re-mailed within five (5) business days to any forwarding address provided or a better address located via skip trace or other search. Class members who receive a re-mailed notice will have an additional fourteen (14) days to respond. Apex shall inform class members receiving a re-mailed notice of the extended deadline. These notice procedures are appropriate and approved.

On the condition that the parties make the above changes to the notice prior to its mailing, the notice is approved.

IV. Conclusion

The motion for preliminary approval of the settlement is GRANTED.

The final approval hearing shall take place on March 3, 2027 at 2:30 p.m. in Department 5.

Case Management Conference at 2:30 p.m. is VACATED.

The following class shall be preliminarily certified for settlement purposes:

All current and former hourly, non-exempt employees employed by Essential Behavioral Support, Inc., in the State of California during the Class Period [September 20, 2020 through July 29, 2026].

Plaintiff shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 8

Case Name: *Los Gatos LLC v. The Town of Los Gatos*
Case No.: 25CV467536

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on July 29, 2026, at 1:30 p.m. in Department 19. The Court now issues its tentative ruling as follows:

I. INTRODUCTION

This is a petition for writ of mandate and complaint brought by petitioner Los Gatos LLC (“Petitioner”) and respondent Town of Los Gatos (“Respondent”). On December 5, 2025, Petitioner filed the Second Amended Petition (“SAP”) alleging causes of action for: (1) writ of mandate – CEQA determination; (2) writ of mandate – claim that an applicant cannot submit more than one revision; (3) violation of State Housing Laws; and (4) invalidation of housing element.

On March 4, 2026, the Court (Hon. Williams) sustained Respondent’s demurrer to the fourth cause of action without leave to amend and ordered this action reassigned to a designated CEQA judge.² The Court observed,

[T]he First Cause of Action of the SAP is labelled “Writ of Mandate—CEQA Determination” and it seeks a determination that an exemption under the California Environmental Quality Act (CEQA) applies to petitioner’s proposed development project under Public Resources Code section 21080.66. The case thus arises under CEQA despite a notice missing from the case caption so indicating. CEQA cases in this court are assigned to designated CEQA judges per Public Resources Code section 21167.1. Accordingly, this CEQA case will be reassigned to a designated CEQA judge.

(March 4, 2026 Order, p. 3:4-11.) On March 10, 2026, the action was reassigned to the undersigned in Department 19.

At issue is Respondent’s motion to dismiss the first cause of action on the ground that Petitioner failed to timely request a hearing as required under Public Resources Code section

² The Court takes judicial notice of the record on its own motion. (Evid. Code, § 452, subd. (d).)

21167.4, subdivision (a). Petitioner filed a timely written opposition, and Respondent filed a timely written reply.

II. MOTION TO DISMISS

Respondent bases its motion to dismiss on Public Resources Code section 21167.4, subdivision (a), which provides:

In any action or proceeding alleging noncompliance with this division, the petitioner shall request a hearing within 90 days from the date of filing the petition or shall be subject to dismissal on the court's own motion or on the motion of any party interested in the action or proceeding.

Thus, “a CEQA action must be dismissed when a timely request for hearing is not filed, provided that a motion is made by any interested party or the court.” (*Fiorentino v. City of Fresno* (2007) 150 Cal.App.4th 596, 603.) CEQA, however, does not categorically bar relief under Code of Civil Procedure section 473. (*Comunidad en Accion v. Los Angeles City Council* (2013) 219 Cal.App.4th 1116, 1132 (*Comunidad*).) Courts have only provided relief for the failure to properly request a hearing under Public Resources Code section 21167.4 when the failure constituted excusable error. (*Ibid.* [collecting cases].)

III. DISCUSSION

Respondent asserts that pursuant to the March 4, 2026 Order, the first cause of action for CEQA determination arises under CEQA and is subject to the 90-day hearing requirement of Public Resources Code section 21167.4, subdivision (a). Petitioner filed the SAP on December 5, 2025, and therefore, had until March 5, 2026 to file a written request for hearing.

Petitioner contends that its first cause of action alleges that Respondent violated the Housing Accountability Act (“HAA”) as codified in Government Code section 65589.5, therefore Public Resources Code section 21167.4 does not apply. Petitioner argues in the alternative that relief under Code of Civil Procedure section 473, subdivision (b) is warranted.

a. Allegations of the SAP

According to the SAP, Petitioner's project is a “builder's remedy project” that is CEQA-exempt under Public Resources Code section 21080.66. (SAP, ¶ 64.) A builder's remedy project is “a housing development project that provides housing for very low, low-, or

moderate-income households” and is subject to various criteria. (Gov. Code § 65589.5, subd. (h)(11).) Public Resources Code section 21080.66 provides that a housing project is CEQA-exempt if it meets various conditions concerning the size, location, consistency with general plan or zoning laws, and other factors. (Pub. Resources Code § 21080.66, subd. (a).)

Petitioner’s first cause of action specifically alleges that a writ of mandate should issue ordering Respondent to comply with Public Resources Code section 21080.66 because Respondent’s policy of imposing environmental impact reports (EIR) on every builder’s remedy project is in violation of CEQA. (SAP, ¶¶ 90-91.) The first cause of action does not allege violation of the HAA.

Petitioner’s opposition focuses on Government Code section 65589.5, subdivision (h)(6)(J), which defines the phrase “disapprove the housing development project”, in relevant part, as failing to make a determination of whether the project is exempt from CEQA. The SAP does not allege that Respondents failed to make a determination, only that Respondent’s determination was incorrect. (SAP, ¶¶ 66, 90.) The SAP also does not allege noncompliance with Government Code section 65589.5, subdivision (h)(6)(J). Accordingly, the first cause of action for CEQA determination cannot be read as charging Respondent with violating the HAA. In any event, to the extent Petitioner intends to allege violation of the HAA, these allegations are encompassed in Petitioner’s third cause of action for violation of State Housing Laws. (SAP, ¶ 115 [alleging Respondent’s noncompliance with HAA].)

b. Application of Code of Civil Procedure Section 473, Subdivision (b)

Code of Civil Procedure section 473, subdivision (b) provides, in relevant part:

The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect.

A party seeking relief under Code of Civil Procedure section 473 based on mistake or inadvertence of counsel must show that the mistake, inadvertence, or general neglect was excusable. (*Comunidad, supra*, 219 Cal.App.4th at p. 1132.)

Petitioner argues that relief under Code of Civil Procedure section 473, subdivision (b) is warranted because neither counsel nor the Court treated this action as arising from CEQA until the eve of the 90-day deadline. This argument is also unpersuasive. As Respondent points out, Petitioner and its counsel are in the best position to know whether the action alleges noncompliance with CEQA. Petitioner provides no authority for the proposition that its reliance on a court's case management schedule and treatment of the case constitutes excusable error. (*United Grand Corp. v. Malibu Hillbillies, LLC* (2019) 36 Cal.App.5th 142, 153 [court may disregard conclusory arguments that are not supported by pertinent legal authority or fail to disclose the reasoning by which the appellant reached the conclusions he or she wants us to adopt].)

As noted above, after the Court issued its ruling on March 4, 2026, Petitioner had at least one additional day to file a written request for hearing or object to the CEQA designation. Petitioner did not do so. And despite representing in its Code of Civil Procedure section 473 motion for relief that a written request would be concurrently filed, Petitioner has not yet filed this request. (Motion for Relief, filed 7/10/2026.) This is not a case of excusable neglect that warrants relief under Code of Civil Procedure section 473. (See *Comunidad, supra*, 219 Cal.App.4th at p. 1132 [finding excusable neglect due to family emergency, inadvertent failure to place date on calendar]; *Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1412-1413 [noting honest mistake of law on a complex debatable problem can provide ground for relief, but not where record shows "ignorance of the law coupled with negligence in ascertaining it."]; *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258 (*Zamora*) ["Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable."])

Given the foregoing, the Court declines to reach Petitioner's remaining argument that relief should be granted because Respondent has not been prejudiced by the delay. (*Zamora, supra*, 28 Cal.4th at p. 258 ["Where the mistake is excusable and the party seeking relief has been diligent, courts have often granted relief pursuant to the discretionary relief provision of section 473 if no prejudice to the opposing party will ensue."])

IV. CONCLUSION

Respondent's motion to dismiss Petitioner's first cause of action for writ of mandate – CEQA determination is GRANTED.

Respondent shall prepare the order after hearing under California Rules of Court, rule 3.1312.

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Calendar Line 9

Case Name: *Berlin Thomas v. Forty Niners Stadium Management Company*
Case No.: 25CV473118

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on July 29, 2026, at 1:30 p.m. in Department 19. The Court now issues its tentative ruling as follows:

V. INTRODUCTION

This is a putative class and representative action arising from alleged wage and hour violations. On August 19, 2025, plaintiff Berlin Thomas (“Plaintiff”) initiated this action by filing the operative Complaint alleging the following causes of action against Defendant Forty Niners Stadium Management Company LLC: (1) failure to pay minimum wage; (2) unpaid overtime; (3) meal break violations; (4) rest break violations; (5) wages not timely paid during employment; (6) wage statement violations; (7) untimely final wages; (8) failure to reimburse necessary business expenses; and (9) unfair and unlawful business practices.

At issue is Defendant’s motion to compel individual arbitration, strike class allegations, and stay civil court proceedings. Plaintiff filed written opposition, and Defendant filed a written reply.

VI. PROCEDURAL ISSUES

a. Motion to Strike Class Allegations

Defendant seeks to strike the class claims as irrelevant or improper under Code of Civil Procedure section 436 because Plaintiff agreed to resolve all disputes through arbitration on an individual basis. The Court notes that the arbitration agreement does not contain a class waiver. Nevertheless, the Court declines to address the motion to strike class allegations because Defendant’s motion to compel arbitration and motion to strike class allegations should have been filed as two separate motions. Moreover, Defendant failed to give proper notice for its motion to strike. “A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (Cal. Rules of Court, rule 3.1322, subd. (a).)

b. Plaintiff's Request for Judicial Notice

Plaintiff requests judicial notice of the California Secretary of State Business Search results for entities named “Forty Niners Stadium Management 49ers Stadium Management LLC” and “Manco” pursuant to Evidence Code section 452, subdivision (h). The request is denied because subdivision (h) does not apply to this request. (See *Gould v. Md. Sound Indus.* (1995) 31 Cal.App.4th 1137, 1145 [“Judicial notice under Evidence Code section 452, subdivision (h) is intended to cover facts which are not reasonably subject to dispute and are easily verified. These include, for example, facts which are widely accepted as established by experts and specialists in the natural, physical, and social sciences which can be verified by reference to treatises, encyclopedias, almanacs and the like or by persons learned in the subject matter.”]; see also *Jolley v. Chase Home Finance LLC* (2013) 213 Cal.App.4th 872, 889 [“[W]e know of no ‘official web site’ provision for judicial notice in California.”]; *Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605, fn. 10 [“Simply because information is on the Internet does not mean that it is not reasonably subject to dispute.”].)

c. Evidentiary Objections

Plaintiff submits evidentiary objections to paragraphs 5 and 8 of the declaration by Defendant's Chief People Officer, Harpreet Basran.

In paragraph 5, Basran attests to his knowledge of Defendant's onboarding process and that the same onboarding process was in place at the time Plaintiff joined and completed the onboarding process. Plaintiff objects on the grounds of lack of foundation and personal knowledge. The objection is sustained as to Basran's testimony that the same process was in place when Plaintiff joined Defendant in 2014.

In paragraph 8, Basran declares that the Employment Acknowledgment and Agreement (“EAA”) contains a typographical error, defining Forty Niners Stadium Management 49ers Stadium Management LLC as “49ers Stadium Management”, but subsequently referring to the same as “Manco.” Plaintiff objects on the following grounds: improper legal conclusion, parol evidence rule, lack of personal knowledge and foundation, hearsay, secondary evidence rule, and improper lay opinion and speculation. The objections are overruled. Reviewing the EAA as a whole, it is clear to the Court by reasonable inference and use throughout, that the

reference to Manco appears to be shorthand for the defendant management company. The Court finds that a reasonable person would not be confused by this usage. In any event, any uncertainty concerning Manco is resolved by the extrinsic evidence that Basran produced in his supplemental declaration. (Supplemental Declaration of Harpreet Basran, Exs. A-B [referring to Defendant as “Manco”]; see *Domino v. Mobley* (1956) 144 Cal.App.2d 24, 29 [noting incorrect amount was a typographical error that did not invalidate the contract and any uncertainty in amount may be resolved extrinsic evidence]; *Gillies v. JPMorgan Chase Bank, N.A.* (2017) 7 Cal.App.5th 907, 913 [“No reasonable person would be confused by this minor typographical error.”])

VII. LEGAL STANDARDS

Defendant contends, and Plaintiff does not dispute, that the Federal Arbitration Act (“FAA”) applies in this case.

In ruling on a motion to compel arbitration, the Court must inquire as to (1) whether there is a valid agreement to arbitrate, and (2) if so, whether the scope of the agreement covers the claims alleged. (See *Howsan v. Dean Witter Reynolds* (2002) 537 U.S. 79, 84.) “Under both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate. [Citations.] The threshold question requires a response because if such an agreement exists, then the court is statutorily required to order the matter to arbitration.” (*Fleming v. Oliphant Financial, LLC* (2023) 88 Cal.App.5th 13, 19, internal quotation marks omitted.)

Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

VIII. DISCUSSION

a. Existence of an Agreement to Arbitrate

Defendant produces the EAA to demonstrate the existence of an arbitration agreement. The EAA provides, in relevant part:

2. I and the Manco agree to utilize binding arbitration as the sole and exclusive means to resolve all disputes that may arise out of or be related in any way to my employment, including but not limited to the termination of my employment and my compensation. I and the Manco each specifically waive and relinquish our respective rights to bring a claim against the other in a court of law, and this waiver shall be equally binding on any person who represents or seeks to represent me or the Manco in a lawsuit against the other in a court of law. Both I and the Manco agree that any claim, dispute, and/or controversy that I may have against the Manco (or its owners, directors, officers, managers, employees, or agents), or the Manco may have against me, shall be submitted to and determined exclusively by binding arbitration under the Federal Arbitration Act ("FAA"), in conformity with the procedures of the California Arbitration Act (Cal. Code Civ. Proc. Sec 1280 et seq., including section 1283.05 and all of the Act's other mandatory and permissive rights to discovery). The FAA applies to this agreement because the Manco's business involves interstate commerce. Included within the scope of this Agreement are all disputes, whether based on tort, contract, statute (including, but not limited to, any claims of discrimination, harassment and/or retaliation, whether they be based on the California Fair Employment and Housing act, Title VII of the Civil Rights Act of 1964, as amended, or any other state or federal law or regulation), equitable law, or otherwise. The only exception to the requirement of binding arbitration shall be for claims arising under the National Labor Relations Act which are brought before the National Labor Relations Board, claims for medical and disability benefits under the California Workers' Compensation Act, Employment Development Department claims, or as may otherwise be required by state or federal law. However, nothing herein shall prevent me from filing and pursuing proceedings before the California Department of Fair Employment

and Housing, or the United States Equal Employment Opportunity Commission[.]

(Declaration of Harpreet Basran, Ex. A [“EAA”].) Basran attests that Plaintiff’s personnel file contained the EAA bearing Plaintiff’s signature. (*Id.* at ¶ 6.) Plaintiff does not dispute that the EAA contains her signature and instead declares that she does not recall signing the agreement. (Declaration of Berlin Thomas [“Thomas Decl.”], ¶ 5.) The contention is unpersuasive because “[a]n arbitration clause within a contract may be binding on a party even if the party never actually read the clause.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Plaintiff also relies on her evidentiary objections to assert that an agreement to arbitration does not exist. Specifically, Plaintiff claims that the unknown and unidentified entity “Manco” demonstrates the absence of a mutual intent to arbitrate with Defendant. As discussed above, the Court overrules Plaintiff’s evidentiary objections and does not find this argument persuasive.

Defendant has met its initial burden of showing the existence of an agreement to arbitrate. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 [“The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’”])

b. Scope of the Agreement

Defendant next argues that (1) the scope of the EAA does not include class-wide arbitration; and (2) the EAA delegates issues of interpretation, applicability, and enforceability of the EAA to the arbitrator.

The Court concludes that the EAA does not include class-wide arbitration because the parties did not agree to include such claims. (*Lamps Plus, Inc. v. Varela* (2019) 587 U.S. 176, 187 [“ ‘[C]lass arbitration, to the extent it is manufactured by [state law], rather than consen[t], is inconsistent with the FAA.’ ”].) Plaintiff contends the parties consented to conformity with the procedures of the California Arbitration Act (“CAA”), and the CAA expressly provides for the consolidation of separate arbitration proceedings. (EAA, ¶ 2; Code Civ. Proc., § 1281.3.) Plaintiff’s contention is unpersuasive because consolidation is not the same as class or representative arbitration. (*Jones v. Starz Ent., LLC* (9th Cir. 2025) 129 F.4th 1176, 1182 [“In

a class or representative arbitration, an individual brings claims *on behalf of* others, whereas a claimant in a consolidated arbitration brings the claim in her *individual* capacity.”].)

The Court also concludes that the EAA does not contain a delegation clause that provides an arbitrator exclusive jurisdiction over issues of interpretation, application, and enforcement of the EAA. Defendant claims the EAA contains a delegation clause because of the following language:

Both I and the Manco agree that any claim, dispute, and/or controversy that I may have against the Manco (or its owners, directors, officers, managers, employees, or agents), or the Manco may have against me, shall be submitted to and determined exclusively by binding arbitration under the Federal Arbitration Act (“FAA”)[.]

The Court does not find this language to be “clear and unmistakable evidence” of an intent to delegate to the arbitrator issues of interpretation, application, or enforceability. (*Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 242 [finding “clear and unmistakable evidence” where agreement stated the arbitrator “shall have the exclusive authority to resolve any dispute relating to the interpretation, applicability, enforceability, or formation of this Agreement”].)

c. Unconscionability

Plaintiff challenges the enforceability of the EAA on the grounds that the arbitration provision contains a moderate to high degree of procedural unconscionability and significant substantive unconscionability.

“The general principles of unconscionability are well established. A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree and the contract contains terms that are unreasonably favorable to the other party.” (*OTO, LLC v. Kho* (2019) 8 Cal.5th 111, 125 (*OTO*), internal citation omitted.) Unconscionability has both procedural and substantive elements, and both must appear for a court to invalidate a contract or one of its individual terms. (*Armendariz v. Foundation Health Psychare Services, Inc.* (2000) 24 Cal.4th 83, 114.) Courts evaluate unconscionability on a sliding scale: “the more substantively oppressive the contract term, the less evidence of procedural

unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa” (*Ibid.*) “The burden of proving unconscionability rests upon the party asserting it.” (*OTO, supra*, 8 Cal.5th at 126.)

i. Procedural Unconscionability

Plaintiff argues that the EAA is procedurally unconscionable because it is a contract of adhesion.

Procedural unconscionability is generally established by showing the agreement is a contract of adhesion, where a standardized contract drafted by the party with greater bargaining strength is imposed on the other party, leaving the subscribing party with only the option to adhere to the contract or reject it. [Citation.] Arbitration contracts imposed as a condition of employment are typically adhesive and may include elements of oppression, including when employees are required to accept an arbitration agreement in order to keep their job after they have begun working for an employer. [Citation.] (*Gurganus v. IGS Solutions LLC* (2025) 115 Cal.App.5th 327, 335.)

The Court finds that the EAA contains a modest amount of procedural unconscionability as a contract of adhesion. While Plaintiff does not recall signing the EAA as part of the onboarding documents, Plaintiff declares that she was required to sign certain documents before she could officially start working for Defendant. (Thomas Decl., ¶¶ 4-5.) Plaintiff attests that she was not told that she could negotiate or refuse to sign the EAA. (*Id.* at ¶ 5.) Furthermore, the EAA does not contain an opt-out provision, indicating that the EAA was likely offered on a take-it-or-leave-it basis and is, therefore, a contract of adhesion. (See *OTO, supra*, 8 Cal.5th at p. 126 [acknowledging take-it-or-leave-it nature of the agreement may render it adhesive].)

Plaintiff also contends that the EAA’s failure to inform her of the arbitration provision and include the arbitration rules indicates surprise and oppression that further demonstrates procedural unconscionability. The Court disagrees.

The EAA is a two-page document, and the arbitration provision is located on the first page. The arbitration provision begins with, “I and the Manco agree to utilize binding

arbitration as the sole and exclusive means to resolve all disputes...” (EAA, p. 1.)

Furthermore, the second page of the EAA clearly states:

MY SIGNATURE BELOW ATTESTS TO THE FACT THAT I HAVE READ,
UNDERSTAND, AND AGREE TO BE LEGALLY BOUND TO ALL OF
THE ABOVE TERMS. **I FURTHER UNDERSTAND THAT THIS
AGREEMENT REQUIRES ME TO ARBITRATE ANY AND ALL
DISPUTES THAT ARISE OUT OF MY EMPLOYMENT.**

(EAA, p. 2, emphasis added.)

Plaintiff cites *Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227 (*Carbajal*) for the proposition that the failure to provide the applicable arbitration rules renders an arbitration agreement procedurally unconscionable. The argument is unpersuasive. *Carbajal* was called into question by *Nguyen v. Applied Medical Resources Corp.* (2016) 4 Cal.App.5th 232, 248, which noted that shortly after *Carbajal* had been decided, the California Supreme Court issued a ruling in *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237 (*Baltazar*) that rejected *Carbajal*. In *Baltazar*, the Court noted that the failure to provide the applicable rules was immaterial where the challenge to enforcement of an arbitration agreement is unrelated to the arbitration rules. (See *Baltazar, supra*, 62 Cal.4th at p. 1246 [“But her challenge to the enforcement of the agreement has nothing to do with the AAA rules; her challenge concerns only matters that were clearly delineated in the agreement she signed. Forever 21’s failure to attach the AAA rules therefore does not affect our consideration of Baltazar’s claims of substantive unconscionability.”]) Plaintiff’s challenge to the enforceability of the arbitration provisions do not arise from the arbitration rules.

Finally, Plaintiff argues that she was surprised because Defendant, a nonparty, seeks to enforce the EAA. Plaintiff’s argument presupposes that the Court finds Defendant is a stranger to the contract. The Court did not do so, and again, rejects that argument here.

While the Court finds some procedural unconscionability based on the adhesive nature of the arbitration agreement, this is not dispositive because Plaintiff must still establish substantive unconscionability. (See *Ramirez v. Charter Communications* (2024) 16 Cal.5th 478, 492-493 [while adhesion contracts are subject to scrutiny, “they remain valid and

enforceable unless the resisting party can also show that one or more of the contract's terms is substantively unconscionable or otherwise invalid"].)

ii. Substantive Unconscionability

Plaintiff argues the EAA is substantively unconscionable because (1) the EAA lacks mutuality; (2) Plaintiff is required to arbitrate her non-employment claims; (3) the EAA does not terminate after a reasonable time; (4) the EAA contains a wholesale Private Attorneys General Act ("PAGA") waiver; (5) the EAA impermissibly includes sexual harassment claims; and (6) Plaintiff signed a confidentiality agreement that prevents her from speaking about "non-public sensitive information" without Defendant's approval.

Plaintiff first contends the EAA lacks mutuality because Plaintiff is required to arbitrate claims against Defendant and its affiliates, but only Defendant was bound to arbitrate its claims against Plaintiff. Plaintiff relies on *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312 (*Cook*) for support. *Cook*, however, is distinguishable because the EAA limits the scope of arbitrable disputes to employment claims and the *Cook* agreement applied to all claims. (*Id.* at p. 348 ["No explanation [was] offered as to why Cook should [have been] required to give up the ability to ever bring claims in court against a USC employee that are unrelated to USC or her employment there."]) Furthermore, the agreement in *Cook* encompassed USC's employees and related entities "in their capacity as such *and otherwise*", expanding the scope to include claims an employee may have against USC's employees and related entities unrelated to their role. (See *Ayala-Ventura v. Superior Court* (2026) 119 Cal.App.5th 241, 258 (*Ayala-Ventura*) [distinguishing *Cook*].) Moreover, employment-related claims have an inherent asymmetry; an employee is more likely to sue the employer and related entities. (*Cocom v. ABM Aviation, Inc.* (9th Cir. June 23, 2026, No. 25-3246) 2026 LX 308411, at *21.) Any lack of mutuality does not necessarily rise to the level of substantive unconscionability. (*Id.* at *22.) In any event, at least one court has found Plaintiff's lack of mutuality argument "unconvincing" where the agreement is solely between the employee and the employer rather than between the employee, the employer, and the employer's related entities. (*Ayala-Ventura, supra*, 119 Cal.App.5th at p. 259 ["The Agreement 'applies equally

to employee and employer initiated claims, carrying the “modicum of bilaterality” required by law.’ ”))

Second, Plaintiff argues that the EAA is overbroad in requiring her to arbitrate non-employment claims. The argument is unpersuasive because it is premised on a selective reading of the EAA. The first sentence of the EAA limits arbitrable disputes to those arising out of or related to her employment. Plaintiff focuses on the third sentence requiring “any claim, dispute, and/or controversy” that she may have against Manco and its affiliates and that Manco may have against her to be arbitrated. The Court rejects Plaintiff’s argument as it must consider the EAA as a whole. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 473 [“Any contract must be construed as a whole, with the various individual provisions interpreted together so as to give effect to all, if reasonably possible or practicable.”])

Third, Plaintiff claims that the EAA contains an unlawful PAGA waiver because it requires arbitration to be the “sole and exclusive means to resolve all disputes that may arise out of or be related in any way to [her] employment[.]” It is well-established that a PAGA claim contains an individual component that may be compelled to arbitration, and a non-individual component, which may not. (*Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1124; see *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 648 [distinguishing individual and representative claims].) Accordingly, an agreement is unconscionable only to the extent it includes a blanket waiver for representative PAGA actions. The Court notes that the EAA is silent in this regard, and in any event, Plaintiff does not allege a PAGA claim.

Fourth, Plaintiff’s assertion that the EAA substantively unconscionable for its indefinite nature is unconvincing. As noted above, the scope of the EAA is limited to Plaintiff’s employment claims. Thus, the scope of the EAA implicitly limits its duration to the length of the relationship between the parties and any disputes that arise therefrom during that time. (*Ayala-Ventura, supra*, 119 Cal.App.5th at p. 257 [reiterating “the importance of context in determining unconscionability.”].)

Fifth, Plaintiff unpersuasively argues that the EAA is substantively unconscionable because it violates the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (“EFAA”) by including any claims arising from her employment. The EFAA became effective on March 3, 2022, nearly a decade after Plaintiff signed the EAA. (9 U.S.C. § 401; see *Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1134 [“In determining unconscionability, our inquiry is into whether a contract provision was ‘unconscionable at the time it was made.’ ”])

Finally, Plaintiff argues that the Confidentiality Agreement and Acknowledgment she signed must be considered as part of the unconscionability analysis. The argument is appropriate to consider. (*Alberto v. Cambrian Homecare* (2023) 91 Cal.App.5th 482, 490 (*Alberto*) [noting confidentiality agreement should be read with arbitration agreement because both were separate parts of the same transaction].) Plaintiff’s assertion that the Confidentiality Agreement and Acknowledgment “arguably” prevents her from speaking with an attorney or others about any “non-public sensitive information”, however, is unpersuasive. Plaintiff has the burden of demonstrating that the arbitration provisions are unconscionable, and it is axiomatic that argument is not evidence. (*Cox v. Griffin* (2019) 34 Cal.App.5th 440, 451.) In any event, *Alberto* is distinguishable. There, the confidentiality agreement treated “compensation and salary data and other employee information” as a “trade secret” that the plaintiff could not discuss. (*Alberto, supra*, 91 Cal.App.5th at p. 493.) That provision was unconscionable not only because it was facially illegal, but also because it affected the plaintiff’s status in the arbitration process. (*Ibid.*) Here, Plaintiff does not make a showing that “non-public sensitive information” necessarily precludes her from discussing her employment claims.

Given the low degree of procedural unconscionability and absence of substantive unconscionability, the Court concludes the EAA is enforceable.

IX. CONCLUSION

Defendant’s motion to compel arbitration of Plaintiff’s individual claims is GRANTED. This action is otherwise STAYED in its entirety pending the outcome of arbitration.

Case Management Conference at 2:30 p.m. July 29 and in related case 25CV478357 are
CONTINUED to December 2, 2026.

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Calendar Line 10

Case Name: *Herlinda Estrada et al. v. Chattem Inc. et al.*
Case No.: 25CV483219

Plaintiffs Herlinda Meza Estrada and Hector Guadalupe Estrada move to compel nonparty U.C. San Diego Health (“UCSD”) to comply with Plaintiffs’ deposition subpoena for the production of business records (pathology materials), personally served on UCSD on April 24, 2026. The subpoena seeks the release of Mrs. Estrada’s own formalin-fixed, paraffin-embedded (“FFPE”) pathology tissue blocks D1 through D16 from her August 2025 surgery (Accession No. HSC-25-30913). UCSD did not serve written objections, did not move to quash or modify the subpoena, and has filed no opposition to this motion despite personal service and confirmed receipt.

The Court GRANTS the motion for the reasons stated below. The Court orders UCSD to produce to Plaintiffs the pathology specimens contained in blocks D1 through D16 (Accession No. HSC-25-30913) within five (5) calendar days of service of notice of this order.

I. Background

This is an asbestos personal-injury action. Plaintiff Herlinda Meza Estrada, age 72, alleges that her terminal, stage III malignant mesothelioma was caused by exposure to asbestos, asbestiform fibers, and fibrous talc in Defendants’ cosmetic talcum-powder products. Defendants deny that their products contain asbestos. Considering Mrs. Estrada’s condition, the Court has granted calendar preference and set trial for September 14, 2026.

In August 2025, Mrs. Estrada underwent a pleurectomy and decortication, left hemidiaphragm resection, and pericardial resection at UCSD. Tissue removed during that surgery was preserved by UCSD into nineteen FFPE blocks, including blocks D1 through D16 (left pleurectomy, visceral and parietal, and decortication). According to the surgical pathology report, the D-specimen blocks contain representative sections of tissue (D1–D10) and full-thickness sections of pleura (D11–D12), pericardium (D13–D14), and diaphragm (D15–D16). (Plaintiffs’ Memorandum of Points and Authorities (“Memo”), pp. 7:12–8:1; Declaration of Angelina Austin (“Austin Decl.”), ¶ 14 & Ex. 6 (Surgical Pathology Report).)

Plaintiffs explain that a plaintiff's pathology serves two distinct evidentiary purposes in a talc-mesothelioma case. Stained slides (including "recut" slides) are used to confirm or refute the mesothelioma diagnosis, while the FFPE tissue blocks may be "digested" (destructively tested) to determine whether asbestos or other fibers are present in the plaintiff's own tissue — evidence Plaintiffs describe as central to proving causation. In February 2026, Plaintiffs amicably obtained fifteen recut slides from UCSD (from block D12) after Mrs. Estrada signed UCSD's "Consent Supplement: Use of Pathology Tissue Material," acknowledging that further testing could exhaust her tissue and preclude further clinical research. Because Plaintiffs already have the recut slides, this motion does not seek slides; it seeks only the D-specimen blocks needed for fiber-burden testing. (Memo, pp. 6:16–7:11, 8:2–9:3; Austin Decl., ¶¶ 11–12, 15 & Ex. 7.)

The parties have stipulated to a protocol governing destructive testing of Mrs. Estrada's pathology materials (Stipulation and Order re: Testing of Plaintiff Herlinda Meza Estrada's Pathology Materials, entered June 9, 2026), reflecting that both sides anticipate testing this tissue. (Memo, p. 13:18–21; Austin Decl., ¶ 18 & Ex. 9.)

On April 24, 2026, after the Court permitted discovery to commence, Plaintiffs personally served UCSD's Department of Pathology with a business-records subpoena (on Judicial Council form SUBP-010) demanding release of Mrs. Estrada's pathology specimens, with a production date of May 14, 2026. UCSD neither produced the blocks nor served any objection. Plaintiffs then engaged in extended meet-and-confer efforts: a May 20, 2026 telephone call with UCSD's Anatomic Pathology Laboratory Quality Assurance Supervisor; six telephone calls to UCSD Risk Management (May 26, June 4, 10, 15, 17, and 18); and emails to Risk Management on June 10 and 16. UCSD Risk Management did not respond. On June 18, 2026, the pathology laboratory relayed that "Risk reviewed the subpoena and has denied the request for the release of tissue block[s]," citing that the blocks "are finite, irreplaceable resources that may be necessary for ongoing patient care, as well as institutional obligations and regulatory requirements," and UCSD offered only additional recut slides. (Memo, pp. 10:15–24; Austin Decl., ¶¶ 2–8 & Ex. 1–5.)

Plaintiffs offered to enter any reasonable hold-harmless agreement and pointed to Mrs. Estrada’s signed Consent Supplement, but UCSD did not further engage. Plaintiffs filed and personally served this motion on July 2, 2026. UCSD’s Quality Assurance Supervisor confirmed receipt on July 7, 2026 (“Received, thank you.”). UCSD filed no opposition, as Plaintiffs’ reply confirms. (Memo, p. 16:15–28; Austin Decl., ¶ 5; Reply, pp. 2:1–22; Declaration of Henry A. Steinberg (“Steinberg Decl.”), ¶¶ 2–5 & Ex. 1–3.)

II. Legal Standard

A party may obtain discovery from a nonparty through a deposition subpoena. (Code Civ. Proc., § 2020.010.) Where only the production of business records is sought, a copy of the deposition subpoena serves as the notice of deposition. (Code Civ. Proc., § 2025.220, subd. (b); *Unzipped Apparel, LLC v. Bader* (2007) 156 Cal.App.4th 123, 130–131.) A business-records subpoena must designate the records to be produced “either by specifically describing each individual item or by reasonably particularizing each category of item,” need not be accompanied by an affidavit of good cause, must be directed to the custodian or other qualified person, and must set a compliance date no earlier than 20 days after issuance or 15 days after service, whichever is later. (Code Civ. Proc., § 2020.410, subds. (a), (c).)

If a deponent “fails to ... produce ... any ... tangible thing under the deponent’s control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that ... production.” (Code Civ. Proc., § 2025.480, subd. (a).) Such a motion must be made no later than 60 days after completion of the record and be accompanied by a meet-and-confer declaration. (Code Civ. Proc., § 2025.480, subd. (b).) The Court also retains broad authority over subpoenas, including the power to order compliance and to make any other appropriate order. (Code Civ. Proc., § 1987.1.) A nonparty properly served with a valid subpoena who fails to comply without justification may be subject to sanctions. (*Terry v. SLICO* (2009) 175 Cal.App.4th 352, 355.) Plaintiffs’ authorities are in accord. (Memo at pp. 11–12.)

The scope of permissible discovery is broad: any matter, not privileged, that is relevant to the subject matter and either admissible or reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.)

III. Analysis

A. The Motion is Unopposed; UCSD has Waived Objections

The record establishes, and the reply confirms, that UCSD filed no opposition to the motion notwithstanding personal service and its written confirmation of receipt. A nonparty served with a business-records subpoena who objects to production must serve a written objection before the production date, and a nonparty that contends a subpoena is defective or improper may move to quash or modify it. (See Code Civ. Proc., §§ 1985.3, subd. (g), 1987.1.) UCSD did neither. By failing to serve any timely objection, failing to move to quash, and failing to oppose this motion, UCSD has forfeited any objection to the subpoena's form or scope, and its bare, out-of-court "denial" of the subpoena is not a recognized basis for noncompliance. There is no authority permitting a nonparty to unilaterally decline to comply with a facially valid, properly served subpoena. (Reply, pp. 2:1–22; Steinberg Decl., ¶¶ 4–5 & Ex. 3; Memo, pp. 12:5–13:8; Austin Decl., ¶ 8 & Ex. 5.)

B. The Subpoena is Procedurally Valid, and the Motion is Timely

The subpoena was issued on Judicial Council form SUBP-010 and, through its Attachment 3, describes the specific items sought: Mrs. Estrada's pathology specimens from Accession No. HSC-25-30913. This satisfies the particularity requirement of section 2020.410, subdivision (a). It was directed to UCSD's Department of Pathology (the custodian of the specimens) and personally served on April 24, 2026, with a compliance date of May 14, 2026 (twenty days after service) satisfying section 2020.410, subdivision (c). The motion, filed July 2, 2026, is within sixty days of the May 14, 2026 non-production and is supported by a detailed meet-and-confer showing, satisfying section 2025.480, subdivision (b). Indeed, although a business-records subpoena requires no showing of good cause, Plaintiffs' meet-and-confer

efforts here were extensive and made in evident good faith. (Memo, pp. 11:8–13:8; Austin Decl., ¶¶ 2–3, 6–8, 17 & Ex. 1–5.)

C. The Requested Materials are Relevant

The requested specimens are Mrs. Estrada’s own tissue, removed from her body during surgery, and go to the heart of the disputed causation issue: whether asbestos or asbestiform fibers are present in her tissue. Fiber-burden (“digestion”) testing can be performed only on the tissue blocks, not on slides; the recut slides Plaintiffs already obtained cannot answer the causation question. That the parties have stipulated to a testing protocol (June 9, 2026) confirms the centrality of this evidence to both sides. Relevance is not seriously in question, and no privacy interest weighs against production; the tissue is the plaintiff’s own, she has expressly consented to its release and testing through UCSD’s Consent Supplement, and she has offered a hold-harmless agreement. Given the September 14, 2026 preferential trial date and imminent expert discovery, Plaintiffs’ need is both substantial and time-sensitive. (Memo, pp. 6:18–27, 13:9–14:18; Austin Decl., ¶¶ 10–12, 15, 18–19 & Ex. 7, 9.)

D. The Form of the Subpoena Does not Defeat Production

The Court notes a characterization question: a subpoena “for production of business records” under section 2020.410 speaks of records produced “for copying,” whereas Plaintiffs seek the original physical tissue blocks rather than copies of documents. To the extent the specimens are better understood as “tangible things” than as records to be copied, that distinction does not warrant denial of the motion. Section 2025.480, subdivision (a), expressly authorizes an order compelling production of a “tangible thing ... specified in ... a deposition subpoena,” and the Court’s authority under section 1987.1 is broad enough to order compliance and fashion appropriate terms. Most importantly, any objection to the form of the subpoena was UCSD’s to raise by timely written objection or a motion to quash; having done neither and having filed no opposition, UCSD has waived the point. On this unopposed record, particularly given Plaintiffs’ clear entitlement to Mrs. Estrada’s own pathology tissue, the Court declines to

let a characterization argument that no party has advanced stand in the way of production. (See Memo, pp. 11:8–13:21.)

E. UCSD’s Stated Reasons Do Not Justify Noncompliance

The reasons UCSD conveyed informally (i.e., that the blocks are finite and “may be” needed for ongoing patient care, and unspecified “institutional obligations and regulatory requirements”) were never presented to the Court through an objection, motion, or opposition, and are unsupported by any evidence. On the present record they do not excuse compliance. Mrs. Estrada has consented in writing to the release and potential exhaustion of her tissue, Plaintiffs have offered a hold-harmless agreement, and the surgical pathology report reflects that the blocks have not been used since September 2025. If UCSD has a genuine, particularized need to retain a minimum quantity of diagnostic tissue, the appropriate course was to raise it through the meet-and-confer process or a motion, not to disregard the subpoena. To preserve UCSD’s legitimate interests while honoring Plaintiffs’ right to their own tissue, the Court’s order below permits the parties to address any such concern through the existing testing protocol and hold-harmless mechanism. (Memo, pp. 15:2–17:5; Austin Decl., ¶¶ 5, 8, 14–15 & Ex. 5–7.)

IV. Conclusion

The Court GRANTS the motion to compel as follows:

1. Within 5 calendar days after service of notice of this order, nonparty U.C. San Diego Health shall produce and release to Plaintiffs the pathology specimens contained in FFPE blocks D1 through D16 from Mrs. Estrada’s August 2025 surgery, Accession No. HSC-25-30913.
2. Production shall be subject to Mrs. Estrada’s executed Consent Supplement and to the parties’ June 9, 2026 Stipulation and Order re: Testing of Plaintiff’s Pathology Materials. The parties and UCSD may adopt by written agreement a mutually acceptable hold-harmless agreement and reasonable chain-of-custody terms.

Nevertheless, no such agreement is a condition of, or shall delay, the production ordered herein.

3. Plaintiffs have not sought monetary sanctions. While the Court reserves the right to order sanctions in the future, it does not impose sanctions at this time.
4. Because UCSD is a nonparty that may not have appeared, Plaintiffs shall serve notice of this order on UCSD (including its Department of Pathology and Risk Management) by personal service or another method reasonably calculated to give actual notice, and shall file proof of service.

Plaintiffs shall prepare the order and judgment in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 11

Case Name: *Tuumamao Esau Jr., II v. Tekberry, Inc.*

Case No.: 26CV486031

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on July 29, 2026, at 1:30 p.m. in Department 19. The Court now issues its tentative ruling as follows:

X. INTRODUCTION

This putative class and representative action was filed pursuant to an agreement between plaintiff Tuumaomao Esau Jr. II (“Plaintiff”) and defendant Tekberry, Inc. (“Defendant” or “Tekberry”).

On October 31, 2022, Plaintiff commenced a separate class action wage and hour action against Tekberry and Bloom Energy Corporation in Santa Clara County Superior Court bearing the case number, 22CV405682 (“*Esau I*”). (Declaration of Alexander G.L. Davies, ¶ 5.) While the parties were unable to reach settlement during June 2024 mediation with a mediator, they continued arms’ length negotiations and finalized settlement in December 2025. (*Id.* at ¶ 12.) The parties agreed that Plaintiff would dismiss Tekberry in *Esau I* and seek approval of settlement with Tekberry in this action. (*Id.* at ¶ 13.)

Plaintiff filed the operative Complaint in this action on February 3, 2026. The Complaint alleges the following causes of action: (1) failure to pay minimum wages; (2) failure to pay overtime wages; (3) failure to provide meal periods; (4) failure to permit rest breaks; (5) failure to reimburse business expenses; (6) failure to provide accurate itemized wage statements; (7) failure to pay wages timely during employment; (8) failure to pay all wages due upon separation of employment; (9) violation of Business and Professions Code §§ 17200, *et seq.*; and (10) enforcement of Labor Code §§ 2698 *et seq.* (“PAGA”).

Plaintiff now seeks an order: granting preliminary approval of class action settlement agreement; conditionally certifying the proposed class for settlement purposes; appointing Plaintiff as class representative; appointing Plaintiff as class representative; appointing Aegis Law Firm, PC as class counsel; appointing ILYM Group, Inc. as settlement administrator and

authorizing ILYM Group, Inc. to send notice of the settlement to class members; and scheduling a final approval hearing.

XI. LEGAL STANDARD

a. Class Action

Generally, “questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235 (*Wershba*), disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.)

In determining whether a class settlement is fair, adequate and reasonable, the trial court should consider relevant factors, such as the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement.

(*Wershba, supra*, 91 Cal.App.4th at pp. 244-245, internal citations and quotations omitted.)

In general, the most important factor is the strength of the plaintiffs’ case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130 (*Kullar*).) But the trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Wershba, supra*, 91 Cal.App.4th at p. 245.) The trial court must examine the “proposed settlement agreement to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.” (*Ibid.*, citation and internal quotation marks omitted.)

The burden is on the proponent of the settlement to show that it is fair and reasonable. However, “a presumption of fairness exists where: (1) the settlement is reached through arm’s-

length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (*Wershba, supra*, 91 Cal.App.4th at p. 245, citation omitted.)

b. PAGA

Labor Code section 2699, subdivision (l)(2) provides that “[t]he superior court shall review and approve any settlement of any civil action filed pursuant to” PAGA. The court’s review “ensur[es] that any negotiated resolution is fair to those affected.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549.) Seventy-five percent of any penalties recovered under PAGA go to the Labor and Workforce Development Agency (LWDA), leaving the remaining twenty-five percent for the aggrieved employees. (*Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 380, overruled on other grounds by *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639.)

Like its review of class action settlements, the Court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) It must make this assessment “in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (*Id.* at p. 77; see also *Haralson v. U.S. Aviation Servs. Corp.* (N.D. Cal. 2019) 383 F. Supp. 3d 959, 971 [“when a PAGA claim is settled, the relief provided for under the PAGA [should] be genuine and meaningful, consistent with the underlying purpose of the statute to benefit the public”], quoting LWDA guidance discussed in *O’Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110 (*O’Connor*).)

The settlement must be reasonable considering the potential verdict value. (See *O’Connor, supra*, 201 F.Supp.3d at p. 1135 [rejecting settlement of less than one percent of the potential verdict].) But a permissible settlement may be substantially discounted, given that courts often exercise their discretion to award PAGA penalties below the statutory maximum even where a claim succeeds at trial. (See *Viceral v. Mistras Group, Inc.* (N.D. Cal., Oct. 11, 2016, No. 15-cv-02198-EMC) 2016 WL 5907869, 2016 U.S. Dist. LEXIS 140759, at *20-24.)

XII. DISCUSSION

a. Provisions of the Settlement

Plaintiff moves for approval of a proposed settlement made on behalf of:

[A]ll non-exempt employees employed by Defendant³ in California who were staffed at Bloom Energy Corporation at any time between May 6, 2018 through June 13, 2025 (“Class Period”).

(Davies Decl., Ex. 1 [“Agreement”], ¶¶ 1.5, 1.16) The settlement also includes a subset PAGA class of aggrieved employees defined as “all non-exempt employees employed by Defendant in California who were staffed at Bloom Energy Corporation at any time between February 8, 2022 through June 13, 2025 (the “PAGA Period”).” (*Id.* at ¶¶ 1.4, 1.16.)

Defendant will pay a gross settlement amount of \$145,000.00. This amount includes: (1) the individual class payments; (2) individual PAGA payments; (3) the LWDA PAGA payment; (4) class counsel fees payment of not more than one-third of the gross settlement amount (\$48,333.33); (5) class counsel expenses payment of up to \$25,000.00, (6) class representative service payment of \$5,000.00; and (7) administrator expenses not to exceed \$6,650.00. The individual class payment will be distributed to participating class members based on their pro rata share of the net settlement amount according to the number of workweeks worked during the class period. The individual PAGA payments will be distributed to aggrieved employees on based on their pro rata share of 25% of the PAGA penalties according to the number of PAGA pay periods worked during the PAGA period. The total amount of the PAGA penalties is \$4,000.00.

In exchange for the settlement, the class members and their representatives agree to release Defendant and related entities and persons “all claims arising during the Class Period that were alleged, or could have been alleged based on the facts alleged in the Operative Complaint or otherwise ascertained in the course of the Action...” (Agreement, ¶ 5.2.) Participating class members, except aggrieved employees, do not release other claims, “including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers’ compensation, or claims based on facts occurring outside the Class Period.” (*Ibid.*) Aggrieved employees and

³ The Agreement defines Defendant as excluding “named-Defendant Bloom Energy Corporation”. (Agreement, ¶ 1.16.) All references to Defendant shall only mean Tekberry, Inc. unless otherwise stated.

their representatives are deemed to have released Defendant from “all claims for PAGA penalties alleged or could have been alleged based on the facts alleged in any of the pleadings that have been filed in the Lawsuit, in Plaintiff’s PAGA Notice Letter, or that were discovered in preparation for mediation and/or asserted at mediation, against Defendant Tekberry, Inc., which arose during the PAGA period.” (*Id.* at ¶ 5.3.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

b. Fairness of the Settlement

Plaintiff contends the Settlement meets the standards for preliminary approval. The parties participated in one, full-day mediation session with Monique Ngo-Bonnici, Esq. (Davies Decl., ¶ 10.) While the parties did not reach settlement through mediation, the parties continued settlement discussions via adversarial, arm’s length negotiations. (*Id.* at ¶ 12.) Prior to reaching settlement, the parties engaged in formal discovery in *Esau I* and subsequently engaged in informal discovery as part of private mediation. (*Id.* at ¶¶ 7-8.) Defendant produced documents and records, including Plaintiff’s personnel files, timekeeping records, and itemized wage statements. (*Id.* at ¶ 9.) Plaintiff’s counsel retained an expert to evaluate Defendant’s potential exposure based on time and payroll records before assessing the risks associated with each claim. (*Id.* at ¶ 19.)

Plaintiff’s counsel estimated that Defendant’s maximum exposure for the following class claims: (1) \$45,910.00 for failure to pay minimum wage and overtime; (2) \$272,897.00 for failure to pay class members weekly; (3) \$526,383.00 for failure to provide meal periods; (4) \$666,901.00 for failure to provide rest breaks; (5) \$1,189,382.00 for waiting time penalties; and (6) \$162,300.00 for wage statement penalties. (Davies Decl., ¶¶ 24, 26, 28-29, 31.) Defendant’s estimated total maximum exposure for the class claims is therefore \$2,863,773.00. Defendant’s estimated total maximum exposure for the PAGA claims is \$280,000.00. (*Id.* at ¶ 32.) Plaintiff’s counsel valued each claim by multiplying the maximum exposure for each claim by the likelihood of class certification and the merits at trial. The chances of class certification and prevailing on the merits of the claims were estimated to be 20%, 30%, or 50%. (*Id.* at ¶¶ 25, 27-28, 30-31.) The proposed settlement represents approximate 4.6 percent

of the maximum potential value of Plaintiff's claims (\$145,000.00/\$3,143,773.00). The proposed settlement amount falls outside the general range of percentage recoveries that California courts have found to be reasonable. (See *Cavazos v. Salas Concrete, Inc.* (E.D. Cal., Feb 18, 2022, No. 1:19-cv-00062-DAD-EPG) 2022 U.S.Dist. LEXIS 30201, at *41-42 [citing cases approving settlements in the range of 5 to 35 percent of the maximum potential exposure].) Plaintiff, however, explains that the value of the claims have been discounted due to Defendant's disclosure of its financial condition under the mediation privilege. (Davies Decl., ¶ 33.)

The Court has reviewed Plaintiff's written submissions and is satisfied that the settlement is fair and may be approved.

c. Service Award, Fees, and Costs

Plaintiff seeks a \$5,000.00 service award.

The rationale for making enhancement or incentive awards to named plaintiffs is that they should be compensated for the expense or risk they have incurred in conferring a benefit on other members of the class. An incentive award is appropriate if it is necessary to induce an individual to participate in the suit.

Criteria courts may consider in determining whether to make an incentive award include: 1) the risk to the class representative in commencing suit, both financial and otherwise; 2) the notoriety and personal difficulties encountered by the class representative; 3) the amount of time and effort spent by the class representative; 4) the duration of the litigation and; 5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation.

These "incentive awards" to class representatives must not be disproportionate to the amount of time and energy expended in pursuit of the lawsuit.

(*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1394-1395, internal punctuation and citations omitted.) Incentive awards are particularly appropriate where a plaintiff undertakes a significant reputational risk in bringing an action against an employer. (*Covillo v. Specialty's Café* (N.D. Cal. 2014) 2014 U.S.Dist.LEXIS 29837, at *29.)

Plaintiff provided a declaration describing his participation in this action in general terms. The declaration does not provide sufficient facts supporting his request. The Court will issue its determination of the approved service award amount at the final approval hearing.

The court also has an independent right and responsibility to review the requested attorney fees and only award so much as it determines reasonable. (See *Garabedian v. Los Angeles Cellular Telephone Co.* (2004) 118 Cal.App.4th 123, 127-128.) Plaintiff's counsel will seek attorney fees of up to one-third of the gross settlement amount (\$48,333.33) and reimbursement of litigation costs up to \$25,000.00. The anticipated settlement administration costs are \$6,650.00. (Declaration of Lisa Mullins, ¶10.) Prior to the final approval hearing, Plaintiff's counsel shall submit lodestar information (including hourly rate and hours worked) as well as evidence of actual litigation costs incurred and settlement administration costs.

d. Conditional Certification of Class

Plaintiffs request that the class be conditionally certified for purposes of the settlement. Rule 3.769(d) of the California Rules of Court states that “[t]he court may make an order approving or denying certification of a provisional settlement class after [a] preliminary settlement hearing.” California Code of Civil Procedure Section 382 authorizes certification of a class “when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court . . .” As interpreted by the California Supreme Court, section 382 requires: (1) an ascertainable class; and (2) a well-defined community of interest among the class members. (*Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 326 (*Sav-On*).)

The “community-of-interest” requirement encompasses three factors: (1) predominant questions of law or fact; (2) class representatives with claims or defenses typical of the class; and, (3) class representatives who can adequately represent the class. (*Sav-On, supra*, 34 Cal.4th at p. 326.) “Other relevant considerations include the probability that each class member will come forward ultimately to prove his or her separate claim to a portion of the total recovery and whether the class approach would actually serve to deter and redress alleged wrongdoing.” (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.) The plaintiff has the burden of establishing that class treatment will yield “substantial benefits” to both “the litigants

and to the court.” (*Blue Chip Stamps v. Superior Court* (1976) 18 Cal.3d 381, 385.) As explained by the California Supreme Court,

The certification question is essentially a procedural one that does not ask whether an action is legally or factually meritorious. A trial court ruling on a certification motion determines whether the issues which may be jointly tried, when compared with those requiring separate adjudication, are so numerous or substantial that the maintenance of a class action would be advantageous to the judicial process and to the litigants.

(*Sav-On, supra*, 34 Cal.4th at p. 326, internal punctuation and citations omitted.)

Plaintiff states there are approximately 400 class members that can be identified from a review of Defendant’s records. There are common questions regarding whether class members were subjected to uniform employment policies or practices that violated wage and hour laws. No issue has been raised regarding the typicality or adequacy of Plaintiffs as class representatives. Therefore, the court finds that the proposed class should be conditionally certified for settlement purposes.

e. Class Notice

The content of a class notice is subject to court approval. “If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court.” (Cal. Rules of Court, rule 3.769(f).) “The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement.” (*Ibid.*) In determining the manner of the notice, the court must consider: “(1) The interests of the class; (2) The type of relief requested; (3) The stake of the individual class members; (4) The cost of notifying class members; (5) The resources of the parties; (6) The possible prejudice to class members who do not receive notice; and (7) The res judicata effect on class members.” (Cal. Rules of Court, rule 3.766(e).)

Here, the form of the notice is generally adequate. It describes the lawsuit, explains the settlement, and states the settlement amounts, including attorney fees and payment to the

named plaintiff. The notice informs class members that they may appear at the final approval hearing to make an oral objection without filing a written objection.

However, the second and third pages of the notice are deficient in suggesting that recipients have only two “basic options” under the settlement: do nothing or opt-out. This portion of the notice must be modified to clarify that recipients have two more “basic options”: to object or challenge the number of workweeks and/or pay periods.

Finally, the following language regarding the final approval hearing shall be added to the notice:

Class members who wish to appear remotely are encouraged to contact class counsel at least three days before the hearing, if possible, so that potential technology or audibility issues can be avoided or minimized.

Turning to the notice procedure, the parties have selected ILYM Group, Inc. (“ILYM”) as the settlement administrator. Defendant will deliver the class data (*i.e.*, class list and related qualifying workweeks and contact information) to ILYM within thirty (30) days after preliminary approval. ILYM shall notify class counsel that the class data has been received and state the number of class members, aggrieved employees, workweeks, and pay periods in the class data. ILYM shall update class members’ addresses using the National Change of Address Database and mail the notice packet within fourteen (14) days after receiving the class data. The notice shall be mailed to all identified class members via first-class United States Postal Service mail. Any returned notices will be re-mailed within three (3) business days to any forwarding address provided or a better address located via skip trace or other search. Class members who receive a re-mailed notice will have an additional fourteen (14) days to respond. ILYM shall inform class members receiving a re-mailed notice of the extended deadline. These notice procedures are appropriate and approved.

On the condition that the parties make the above changes to the notice prior to its mailing, the notice is approved.

XIII. Conclusion

The motion for preliminary approval of the settlement is GRANTED.

The final approval hearing shall take place on March 3, 2027 at 2:30 p.m. in Department 5.

Case Management Conference at 2:31 p.m. is VACATED.

Further Case Management Conference is set on September 3, 2026 at 2:30 p.m. in Department 22.

The following class shall be preliminarily certified for settlement purposes:

All non-exempt employees employed by Tekberry, Inc. in California who were staffed at Bloom Energy Corporation at any time between May 6, 2018 through June 13, 2025.

Plaintiff shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 12

Case Name:

Case No.:

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Calendar Line 13

Case Name:

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